

26CHCV01668 26CHCV01668

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Case Number: 26CHCV01668 Hearing Date: August 20, 2026 Dept: F43

Dept. F43

Hearing Date: 08-20-26

Case # 26CHCV01668, Stevens v.

Pelaez, et al.

Trial Date: None set.

APPLICATION FOR A
WRIT OF POSSESSION

MOVING PARTY: Plaintiff Dawn Stevens, in pro per

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order granting plaintiff's application for
writ of possession for dog Decker and a turnover and disclosure order as to the
whereabouts of the dog Mallory.

RULING: Application is granted in part as to the dog
Decker and denied in part as to the dog Mallory. The court waives the undertaking as to the
dog Decker.

SUMMARY OF ACTION

On April 24, 2026, plaintiff Dawn Stevens (Plaintiff) filed this action against several defendants, claiming she is the lawful owner of two dogs (Decker and Mallory) and seeking possession of both dogs. The First Amended Complaint, filed on April 29, 2026, asserts (1) conversion, (2) trespass to chattels, (3) claim and delivery, (4) declaratory relief, (5) intentional infliction of emotional distress, and (6) negligence. Plaintiff is self-represented.

Plaintiff alleges she is the lawful owner of Decker, her licensed service dog and mobility assistant; and Mallory, a Belgian Malinois puppy. On October 28, 2025, Plaintiff suffered a medical emergency and was transported to West Hills Hospital due to severe respiratory distress and critically low oxygen levels. Plaintiff temporarily entrusted her dogs to James De Jesus during her hospitalization. However, on October 29, 2025, defendant Pablo Pelaez obtained possession of the dogs without Plaintiff's authorization and falsely represented to Mr. De Jesus that Plaintiff had authorized him to retrieve the dogs. Mr. De Jesus relied on the assertion and surrendered possession of the dogs to defendant Mr. Pelaez. Mr. Pelaez did not return the dogs. Plaintiff believes defendants Ashley Castro, Dana Carrara, Redline Rescue, and Hector Ruiz Romo assisted Mr. Pelaez in withholding, transferring, fostering, and detention of both dogs. Ms. Carrara created a fundraiser and public representations concerning at least one of the dogs. Plaintiff believes the dog Decker is currently in the possession of defendant Gina Quinones in Moorpark, California and that Mallory is currently in the possession of defendant Mi Kyoung Chaing in Las Vegas, Nevada. According to Plaintiff, Decker's microchip registration was altered or transferred without her knowledge. Plaintiff has demanded the return of her dogs directly and through others, but defendants have not returned them.

On May 29, 2026, defendant Gina Quinones filed an answer to the Complaint. Default was entered against defendant Mi Kyoung Chaing on August 1, 2026.

The court previously denied Plaintiff's application for a writ of possession without prejudice due to notice and evidentiary issues. (6/24/2026 Minute Order.)

On July 22, 2026, Plaintiff filed a renewed application for a writ of possession for Decker and Mallory. Plaintiff filed supplemental papers on July 27 and 28, 2026. No oppositions were filed.

ANALYSIS

A. Writs of Possession

Upon, or after, filing a complaint, the plaintiff may apply for a writ of possession by filing a written application with the court in which the action is brought. (Code Civ. Proc., § 512.010, subd. (a).) A writ of possession must be issued if the court finds: “(1) The plaintiff has established the probable validity of the plaintiff’s claim to possession of the property. [and] (2) The undertaking requirements of Section 515.010 are satisfied.” (Code Civ. Proc., § 512.060, subd. (a).) “No writ directing the levying officer to enter a private place to take possession of any property shall be issued unless the plaintiff has established that there is probable cause to believe that the property is located there.” (Code Civ. Proc., § 512.060, subd. (b).)

The application must be executed under oath and include:

(1) A showing of the basis of the plaintiff’s claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff’s claim is a written instrument, a copy of the Instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4)

A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5)

A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

(Code Civ. Proc., § 512.010, subd.

(b).)

Attached to Plaintiff's supplemental are the following relevant exhibits: (1) a copy of Decker's dog license Plaintiff by the City of Los Angeles, Department of Animal Services on August 23, 2025; (2) a 24Petwatch document listing microchip number 911002001594317; (3) a copy of a bill of sale for a Belgian Malinois Puppy, listing the date of sale as September 17, 2025; (4) copies of photographs taken of Decker and Mallory on October 25, 2025; (5) a screenshot of a May 23, 2021, social media post celebrating Plaintiff surprising her son with a six-month old Decker; (6) a screenshot of a March 14, 2021, social media post showing Decker in a harness; (7) copies of photographs of Mallory in a GoFundMe campaign image and in her new home; (8) a copy of Plaintiff's hospital wristband from October 28, 2025; (9) declaration of Lamar Preston Hall; (10) declaration of James De Jesus; (11) declaration of Elizabeth Petito-Martinez; (12) copy of a demand letter from Plaintiff to defendant Pelaez, dated November 15, 2025; (13) Plaintiff's supplemental declaration concerning conflicting narratives and custody timeline; (14) a conflicting narrative source chart; (15) an email summary of a GoFundMe campaign for Mallory; (16) a copy of Mallory's medical records and prescriptions from ACCESS Specialty Animal Hospital in Woodland Hills, CA; (17) a copy of defendant Pelaez's February 1, 2026, response to Plaintiff's initial civil petition; (18) microchip registration records for Decker; and (19) letters sent by Plaintiff to defendants Quinones and Kyoung Chaing on April 10, 2026, requesting that defendants not transfer, conceal, relocate, adopt out, euthanize, or alter the records of the animals and to preserve evidence related to the dogs. (Supplemental Declaration of Dawn Stevens, Exhs. A-O.)

No opposing evidence has been filed.

1. Plaintiff has established “probable validity” of her claim of ownership and possession of Decker and Mallory.

Based on the evidence and supporting declarations, the court finds the following:

On August 23, 2023, Plaintiff obtained a license for Decker, a mixed breed labrador retriever, black dog. (7/22/2026 Declaration of Dawn Stevens ¶ 10; Suppl. Stevens Decl., Exh. A at pp. 1-4.) The license remains active until it expires on August 23, 2026 and lists Decker’s special status as “disabled”. This supports Plaintiff’s statement that Decker functions as her mobility-assistance animal. (7/22/26 Stevens Decl. ¶ 10.) Plaintiff also presents social media screenshots demonstrating she had possession of Decker between March of 2021 and May of 2021. (Suppl. Stevens Decl., Exh. C at pp. 3-4 [image showing Decker wearing a mobility harness].) Although Plaintiff provides the 24Petwatch microchip registry transfer form identifying a dog named Decker, this does not demonstrate that Plaintiff was Decker’s original owner. (Suppl. Stevens Decl., Exh. A at p. 5 (911002001594317), Exh. N at p. 2.) The 24Petwatch document included with the dog license paperwork lists the same 911002001594317 number, but it is unclear whether this document is actually part of the licensing paperwork. Moreover, the 24Petwatch transfer form lists the same identification number, Decker’s name, and Plaintiff’s name, but is undated. Thus, it is unclear whether this is a new transfer form or the original form from when Plaintiff first obtained possession of Decker. Moreover, the date of birth in Plaintiff’s initial declaration is March 29, 2016 while the date of birth on the 24Petwatch form is October 1, 2017. (Compare 7/22/2026 Declaration of Dawn Stevens ¶ 10, with Suppl. Stevens Decl., Exh. N. at p. 2.) Regardless, the other evidence (the date-stamped photographs and dog license) support a finding that Plaintiff owned and possessed the dog Decker before the October 28, 2026, incident.

On September 17, 2025, Plaintiff purchased Mallory, a Belgian Malinois puppy, from Kayley Cortini for \$1,000. (7/22/2026 Declaration of Dawn Stevens ¶ 11; Suppl. Stevens. Decl., Exh. B.) However, the Bill of Sale indicates the

seller executed the document on January 19, 2026, almost four months after Plaintiff's medical emergency. Although the Bill of Sale states the document is a duplicate created with both the seller and buyer's knowledge on January 19, 2026, the document fails to state when Plaintiff executed the document. Even still, Plaintiff presents photographs taken of both Mallory and Decker on October 25, 2025, which confirm the Mallory in the GoFundMe Campaign is the same Mallory who was in Plaintiff's custody on October 25, 2025. (7/22/26 Stevens Decl. ¶ 13, Exh. C at pp. 1-2.) The October 25, 2025, photographs were taken by Elizabeth Petito-Martinez at the Freedom Center Church in Chatsworth, CA on October 25, 2025, before Plaintiff's medical emergency. (Declaration of Elizabeth Petito-Martinez, Exh. A; 7/22/26 Stevens Decl. ¶ 13, Exh. C at pp. 1-2.) Ms. Petito-Martinez has confirmed that she personally observed Plaintiff with both dogs on numerous occasions before October 25, 2025. (Petito-Martinez Decl. ¶ 6.) This demonstrates Plaintiff owned and possessed the dog Mallory before the October 28, 2026, incident.

Lamar Preston Hall claims he has known Plaintiff for almost two years and was her immediate neighbor for more than a year. (Declaration of Lamar Preston Hall ¶ 3.) Mr. Hall observed Plaintiff with her dogs, mainly Decker, on many occasions and never observed anything that caused him to be concerned about the dogs' safety, care or well-being. (Id. ¶ 5.)

This further demonstrates Plaintiff possessed both dogs through October 28, 2025, when she suffered a medical emergency which required her to be taken by ambulance to West Hills / UCLA Medical Center. (7/22/26 Stevens Decl. ¶¶ 12, 15.) During her emergency, Plaintiff temporarily entrusted the dogs to James De Jesus for safekeeping and did not authorize him to transfer ownership or permanent possession to any other party. (7/22/26 Stevens Decl. ¶ 16.)

In his supporting declaration, James De Jesus confirms he took the dogs and Plaintiff's wallet and valuables with him while running some errands on October 29, 2025.

(Declaration of James De Jesus ¶¶ 8-9.)

As Mr. De Jesus was completing his errands at the Trebek Center in Northridge, an individual named "Pablo" pulled up in his car and told Mr. De Jesus that Plaintiff was fine and sent him to retrieve the dogs. (Id. ¶¶ 13-14.) Mr. De Jesus had previously met Pablo at Plaintiff's home. Because Mr. De Jesus knew Plaintiff trusted Pablo and Pablo made assurances about taking the dogs and Plaintiff's property back to her, Mr. De Jesus gave Pablo the dogs and

Plaintiff's wallet and valuables. (Id.

¶¶ 16-17.) A few days later, Plaintiff

went to the Trebek Center looking for the dogs and her personal property. (Id. ¶ 19.)

This confirms that defendant Pablo Pelaez took possession

of Decker and Mallory at the Trebek Center in Northridge, CA on October 29, 2025.

At some point, the dogs were transferred to the custody

of Redline Rescue. (7/22/2026 Stevens

Decl. ¶ 20.) Plaintiff presents Mr.

Pelaez's supposed unfiled response to another civil petition she filed along with his supporting affidavit. (Suppl.

Stevens Decl., Exh. M at pp. 1-7.) Mr. Pelaez

claims he had previously provided Plaintiff, Mallory, and Decker with food and shelter because Plaintiff is an unhoused individual and insists that Plaintiff told him the dogs were stolen. (Id.,

Exh. M at p. 4, ¶ 2.) Mr. Pelaez

subsequently searched an encampment in Chatsworth, called the Los Angeles

Police Department, and found Mr. De Jesus at the Trebeck Center. When Mr. Pelaez took possession of the dogs on October 29, 2025, he observed that Mallory was in severe respiratory distress (coughing blood/saliva) and Decker was limping, dehydrated, and breathing heavily. (Id., Exh. M

at p. 4, ¶ 3.) That same day, Mr. Pelaez

took both dogs to ACCESS Emergency Veterinary Hospital in Winnetka. According to Mr. Pelaez, Mallory was diagnosed with life-threatening pneumonia and Decker was severely dehydrated and physically exhausted. (Id.,

Exh. M at p. 4, ¶¶ 4-5, Exh. L.) According

to Mr. Pelaez, the vet advised that returning both dogs to prior conditions

would be unsafe and posed a serious risk of further harm or death. (Id., Exh. M at p. 4, ¶ 4.) The veterinary staff provided Mr. Pelaez with

supportive care instructions for Decker and Mr. Pelaez fostered the dogs. (Id., Exh. M ¶¶ 5-6.)

Mr. Pelaez contacted Dana Carrara, a coordinator within a

network for dog rescue organizations to seek assistance and guidance concerning the costs of treatment. (Suppl. Stevens

Decl., Exh. M at p. 5, ¶¶ 6-7, 9.) Ms.

Carrara connected Mr. Pelaez with Hector Ruiz-Romo, head of Redline Rescue, who assisted Mr. Pelaez. (Id., Exh. M

at p. 5, ¶¶ 7-8.) At some point, Ms.

Carrara created a GoFundMe campaign for Mallory stating “her owner overdosed on Friday the 24th,” that Mallory was abandoned, that she was without food and water and proper shelter, that she was struggling to breathe, and that she was rushed to ACCESS Emergency Pet Hospital where she was being treated. (Id., Exh. K.) The evidence does not demonstrate that

Plaintiff’s medical emergency was due to an overdose. It is unclear when this fundraiser was posted, but Plaintiff presents an email from a “Stevens Trio” with a description of the GoFundMe campaign that was sent on November 27, 2025. (Id., Exh. K.)

At some point, Redline Rescue adopted both dogs to other dog owners, but Plaintiff provides no evidence demonstrating the transfer to other parties. However, none of the parties oppose Plaintiff’s claim that she originally owned Decker and Mallory and that the dogs were adopted out to defendant Gina Quinones (Decker) and defendant Mi Kyoung Chaing.

Thus, Plaintiff has demonstrated the probable valid claim of possession for both Decker and Mallory.

2. The court denies the application as to the dog Mallory because Plaintiff provides no proof that the renewed application was served on defendant Chaing and because Plaintiff fails to demonstrate the full chain of custody from defendant Dana Carrara or defendant Redline Rescue to defendant Mi Kyoung Chaing which would give the court jurisdiction over Ms. Chaing.

Plaintiff requests a turnover order directed to any defendant subject to this court’s jurisdiction who possesses or controls Mallory, and an order requiring precise disclosure of her current location, custodian, and transfer history.

(7/22/26 Stevens Decl. ¶ 28.) Plaintiff claims Mallory is presently in the possession, custody, and control of defendant Mi Kyoung Chaing at 7413 Cleghorn Canyon Way, Las Vegas, Nevada 89113 or another private residence or place controlled by Ms. Kyoung Chaing. (7/22/26 Stevens Decl. ¶ 25.)

However, Plaintiff fails to present evidence which demonstrates the court has jurisdiction over Ms. Chaing and must compel her to comply with its orders. Specifically, Plaintiff does not demonstrate whether Ms. Chaing obtained Mallory in California or in Nevada.

Furthermore, Plaintiff again fails to demonstrate she served Ms. Chaing with her "Renewed" Application materials filed on July 22, 27, and 28, 2026. "Each party shall file with the court and serve upon the other party within the time prescribed by rule any affidavits and points and authorities intended to be relied upon at the hearing." (Code Civ. Proc., § 512.050; Code Civ. Proc., § 512.030, subd. (b) [service requirements for parties who have not appeared]; see also Code Civ. Proc., § 512.040 [requirements for notice of application].) Failure to direct service to the correct party or their attorney of record therefore renders service defective under the statute. A court may deny a motion without prejudice on the ground that service is defective and require the party to properly serve and refile the motion before considering the motion on the merits. (*Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 564, fn. 1.) The court has reviewed Plaintiff's application and the later served supporting papers, and finds that she has failed to file proofs of service, indicating defendant Chaing was served with her renewed application.

The proofs of service attached to Plaintiff's Supplemental Declaration filed on July 27, 2026, appear to show Ms. Chaing was served by personal service with the documents on June 12, 2026. (Supl. Stevens Decl. at p. 97 [summons, first amended complaint, original application for writ of possession, and notice of application and supporting documents].) However, the proof of service is date stamped for June 24, 2026, and other than the refiled De Jesus, Preston Hall, and Petito-Martinez declarations, the supplemental declaration is dated July 24, 2026. The record does not indicate the instant application was ever served on Ms. Chaing. Finally, despite not serving Ms. Chaing with the instant application, Plaintiff filed a request to enter default against Ms. Chaing which was entered on August 13, 2026.

Therefore, the court denies the application as to the dog Mallory and defendant Mi Kyoung Chaing.

3. The court grants Plaintiff's application for a writ of possession as to Decker.

Plaintiff asks that the court direct the writ to the levying officer having jurisdiction in Ventura County for the possession of the dog Decker. (7/22/26 Stevens Decl. ¶)

27.) Through party statements, filings, service and address records, online and skip-trace research, Plaintiff has determined that Decker is presently in the possession, custody, and control of defendant Gina Quinones at her private residence: 6809 Auburn Circle, Moorpark, California 93021. (7/22/26 Stevens Decl. ¶ 24.)

Plaintiff has met her burden of demonstrating she owns and is entitled to a writ of possession as to the dog Decker, along with orders prohibiting defendant Gina Quinones from transferring, destroying, or otherwise concealing Decker.

Therefore, the court grants Plaintiff's application for a writ of possession as to defendant Gina Quinones concerning the dog Decker.

4. The court waives Plaintiff's undertaking requirement as to the writ of possession for the dog Decker.

Plaintiff asks the court to waive the written undertaking requirement because none of the defendants have an interest in the dogs. Because the application is denied as to Mallory, the court only addresses the undertaking issue as to Decker.

"[T]he court shall not issue a temporary restraining order or a writ of possession until the plaintiff has filed an undertaking with the court. The undertaking shall provide that the sureties are bound to the defendant for the return of the property to the defendant, if return of the property is ordered, and for the payment to the defendant of any sum recovered against the plaintiff. The undertaking shall be in an amount not less than twice the value of the defendant's interest in the property or in a greater amount. The value of the defendant's interest in the property is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property." (Code Civ. Proc., § 515.010, subd. (a).)

The undertaking requirement is mandatory and cannot be waived by the court except as provided in Section 515.010, subdivision (b), a court finding that defendant has no interest in the property. (RCA Service Co. v. Superior Court (1982) 13 Cal.App.3d 1, 3-4.) "If the court finds that the defendant has no interest in the property, the court shall waive

the requirement of the plaintiff's undertaking and shall include in the order for issuance of the writ the amount of the defendant's undertaking sufficient to satisfy the requirements of subdivision (b) of Section 515.020." (Code Civ. Proc., § 515.010, subd. (b).)

Plaintiff claims Decker's claim and delivery value is \$5,000. (7/22/2026 App. for Writ of Possession at pp. 2:24-3:2; 7/22/2026 Stevens Decl. ¶ 34.) But Plaintiff presents no appraisal evidence, sales data, or other evidence of Decker's fair market value. Moreover, none of the defendants present opposing evidence demonstrating they have any interest in Decker or any obligations secured by Decker such as conditional sales contracts, security agreements, liens, or encumbrances.

Based on the evidence before the court, the court finds that defendant Quinones has no interest in the dog Decker.

Therefore, the court grants Plaintiff's request to waive Plaintiff's undertaking requirement as to Decker.

CONCLUSION and ORDER

Plaintiff Dawn Stevens' application for a writ of possession for the dog Decker is granted.
Plaintiff's application as to the dog Mallory is denied.

The court grants Plaintiff's request for an undertaking waiver as to the dog Decker.

Clerk of the Court to give notice.